

YEAR TWO · VIRTUES · SESSION FIVE

Justice

St. Albert the Great Lay Dominican Fraternity

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1 · Session Outline

1. Justice

- a. CCC 1807
- b. ST II-II Q 58 (with Q 61, A. 1; Q 66, A. 7; and Q 120)
- c. Daniel 13:1–64 (NABRE)
- d. St. Juan Macías — excerpt from Augustine Thompson, O.P., *Dominican Brothers: Conversi, Lay, and Cooperator Friars*
- e. Section Summaries and Discussion Questions

2 · Justice: A Conceptual Introduction

The classical definition of justice is “to each their due.” But immediately that simple definition expands and becomes more complex: by what standard is something due to someone? How is timing an aspect of justice? From whose perspective is something due? As we spin out these aspects of justice, fairness also rises upon the horizon. And then there is equity — a broader concept, perhaps, than either justice or fairness, reaching beyond the individual to the community and even to communities over time.

I have practiced law in California for over thirty-five years and have some experience of what justice appears to be in the civil legal arena. The American judicial system inherits its basic legal system from English common law: the concept of juries, contract law, estates and trusts, and the concept of precedent and following form. We also inherited the adversarial system, where advocates take one side of a perceived two-sided issue and play out a zero-sum game, either before a judge or a jury, in the first instance.

Rawls and the Difference Principle

I had the privilege of taking classes in political philosophy from Prof. John Rawls (*A Theory of Justice*) and, as any eighteen-year-old at the foot of a master, have been greatly influenced by his thought. But his argument is stricter than the impression it leaves, and the strictness is the interesting part.

He does not say that we should be mindful of the least advantaged. He says that an inequality is *justified only if* it works to the greatest benefit of the least advantaged. Good will is not the test; the inequality has to earn its keep. That test comes third in a fixed order — equal basic liberties first, fair equality of opportunity second, the difference principle only after — so it never licenses trading away anyone’s

liberty for a larger pile of goods. The reason it has to be forced is the one I have seen in thirty-five years of practice: the most advantaged already have the system taking their interests preferentially into account, and if we do not oblige ourselves to account for the least among us, they will not be accounted for at all.

He also reaches this by a procedure rather than by a sentiment. Behind the veil of ignorance, not knowing which life would turn out to be mine, I would not gamble on being the one at the bottom. And the procedure is aimed at the basic structure of society — the constitution, the laws, the markets, the institutions that distribute advantage before any of us makes a choice — and not at what you and I do at the kitchen table.

Where Rawls and Aquinas Part Company

That last point is where Rawls and Aquinas part company, and the parting is worth an hour. For Aquinas, justice is a habit in the will of a person, ordered to the common good and finally to God. For Rawls, justice is a property of institutions, worked out deliberately without appeal to any comprehensive account of the good life — he keeps a thin one, the primary goods a citizen needs whatever else he wants — so that citizens who disagree about God can still agree on the terms of their cooperation. Aquinas would ask Rawls where the will went. Rawls would ask Aquinas whose account of the good is going to be enforced, and by whom. Neither question is rhetorical, and neither man was careless.

While Rawls offers a procedural and institutional framework, Aquinas treats justice as relational, always encompassing the other, with justice as giving God due praise and giving our neighbors what is due at the right time, place and manner. **Rawls's analysis, essentially Kantian, treats the will as practical reason and gives the right priority over the good: the principles of justice are settled first, in the original position, and each citizen must then pursue his own conception of the good within them. That is the reverse of the natural law, in which the good precedes the law. For Aquinas, the will is the intellectual appetite aimed towards the apprehended good.** Thus, the union of the will and the aim at a final good reveals the gap in Kant. If the will is merely practical reason, not inclined to the good, then the will “freely floats” and anything can be chosen, the freedom of indifference (Servais Pinckaers, O.P., *The Sources of Christian Ethics*).

Rawls must bracket the good to preserve political neutrality; Aquinas cannot bracket the good because justice is a virtue ordered to the final end of the human person. Trust in revelation, a humble approach, and an inner habit towards the good; these are virtues of the person and cannot be imposed by institutions. That is one reason subsidiarity matters; justice demands considerations of persons in their individual circumstances, a solution a top-down institutional approach cannot reach. Aquinas names the instrument that reaches it: *epikeia* (ST II-II Q 120), the virtue that sets aside the letter of a rule when keeping it would defeat the very purpose the rule exists to serve. It is not an exception to justice but justice's finer instrument, and we will meet it again at the porter's door in §6.

Two Examples

Mom has come home from work, Jane has rolled out a pizza and set the toppings, and it is ready to come out of the oven. Sam is at the game console, playing, and Fritz the dog is snoozing. Jane plates the

pizza and Mom takes out the cutter, but she does not make equal amounts: she takes a third, Jane gets a quarter, and Sam takes his 5/12th and splits with Fritz.

Jason is out late at night, searching for a drug store to get medicine for his ill daughter, Jenn. He has been laid off by an AI-driven reduction in force, his medical insurance has lapsed, and Jenn will go into a coma without the drug. As the rain falls and soaks his shivering t-shirt, he sees in the window the drug he needs. He also sees a rock on the street.

Director's note: the tradition answers this case directly. Aquinas holds that in a case of urgent and evident necessity, taking what one needs from another's goods is not theft (ST II-II Q 66, A. 7). Hold the citation until the group has argued the case on its own terms; question 4 in §7.1 is framed so that it does not disclose it.

3 · CCC 1807: The Catechism's Definition of Justice

CCC 1807 defines justice as the “constant and firm will to give their due to God and neighbor.” Justice toward God is the virtue of religion; justice toward neighbor establishes harmony, rights, equity, and the common good. The Catechism emphasizes habitual right thinking and upright conduct, warning against partiality toward either the poor or the powerful.

1807 *Justice* is the moral virtue that consists in the constant and firm will to give their due to God and neighbor. Justice toward God is called the “virtue of religion.” Justice toward men disposes one to respect the rights of each and to establish in human relationships the harmony that promotes equity with regard to persons and to the common good. The just man, often mentioned in the Sacred Scriptures, is dis-

tinguished by habitual right thinking and the uprightness of his conduct toward his neighbor. “You shall not be partial to the poor or defer to the great, but in righteousness shall you judge your neighbor.”⁶⁸ “Masters, treat your slaves justly and fairly, knowing that you also have a Master in heaven.”⁶⁹ (2095, 2401)

Three Models of Justice

- Justice as a bargained-for exchange — assumes sufficient knowledge and equal bargaining positions.
 - Justice as exact equivalents — fails, because people are not fungible; each has their own unique needs.
 - Justice as a guaranteed minimum — who pays for it?
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4 · ST II-II Q 58: Aquinas on Justice

Aquinas defines justice as a habit that inclines a person to render to each their due with a constant and perpetual will. The division proceeds in two steps, not one. He first distinguishes general from particular justice (Q 58, A. 5–7), and then divides particular justice into its two species (Q 61, A. 1):

- General (legal) justice — ordering the person toward the common good; its object is the good of the whole community.
- Particular justice — governing what one person owes another, and divided in turn into:
 - Commutative justice — fairness in transactions between the parties themselves.
 - Distributive justice — equitable apportionment of common goods among the members of the community.

Aquinas insists that justice is always toward another, that it resides in the will, and that it is the chief of the moral virtues because it perfects our relationships. He also clarifies that “perpetual and constant” refers to the stability of the will, not to an unending act. The text reproduced below is the heading of Q 58 with its twelve points of inquiry, followed by Article 1 in full; the remaining articles are summarized here rather than reprinted.

QUESTION 58

Justice

We must now consider justice. Under this head there are twelve points of inquiry:

- (1) What is justice?
- (2) Whether justice is always towards another?
- (3) Whether it is a virtue?
- (4) Whether it is in the will as its subject?
- (5) Whether it is a general virtue?
- (6) Whether, as a general virtue, it is essentially the same as every virtue?
- (7) Whether there is a particular justice?
- (8) Whether particular justice has a matter of its own?

(9) Whether it is about passions, or about operations only?

(10) Whether the mean of justice is the real mean?

(11) Whether the act of justice is to render to everyone his own?

(12) Whether justice is the chief of the moral virtues?

ARTICLE 1

Whether justice is fittingly defined as being “the perpetual and constant will to render to each one his right”?

OBJECTION 1: It would seem that lawyers have unfittingly defined justice as being *the perpetual and constant will to render to each one his right*.

For, according to the Philosopher (*Ethic.* v, 1), justice is a habit which makes a man *capable of doing what is just, and of being just in action and in intention*. Now *will* denotes a power, or also an act. Therefore justice is unfittingly defined as being a will.

OBJ. 2: Further, rectitude of the will is not the will; else if the will were its own rectitude, it would follow that no will is unrighteous. Yet, according to Anselm (*De Veritate* xii), *justice is rectitude*. Therefore justice is not the will.

OBJ. 3: Further, no will is perpetual save God's. If therefore justice is a perpetual will, in God alone will there be justice.

OBJ. 4: Further, whatever is perpetual is constant, since it is unchangeable. Therefore it is needless in defining justice, to say that it is both *perpetual* and *constant*.

OBJ. 5: Further, it belongs to the sovereign to give each one his right. Therefore, if justice gives each one his right, it follows that it is in none but the sovereign: which is absurd.

OBJ. 6: Further, Augustine says (*De Moribus Eccl.* xv) that *justice is love serving God alone*. Therefore it does not render to each one his right.

I ANSWER THAT, The aforesaid definition of justice is fitting if understood aright. For since every virtue is a habit that is the principle of a good act, a virtue must needs be defined by means of the good act bearing on the matter proper to that virtue. Now the proper matter of justice consists of those things that belong to our intercourse with other men, as shall be shown further on (A. 2). Hence the act of justice in relation to its proper matter and object is indicated in the words, *Rendering to each one his right*, since, as Isidore

says (*Etym.* x), *a man is said to be just because he respects the rights (jus) of others.*

Now in order that an act bearing upon any matter whatever be virtuous, it requires to be voluntary, stable, and firm, because the Philosopher says (*Ethic.* ii, 4) that in order for an act to be virtuous it needs first of all to be done *knowingly*, second to be done *by choice*, and *for a due end*, third to be done *immovably*. Now the first of these is included in the second, since *what is done through ignorance is involuntary* (*Ethic.* iii, 1). Hence the definition of justice mentions first the *will*, in order to show that the act of justice must be voluntary; and mention is made afterwards of its *constancy* and *perpetuity* in order to indicate the firmness of the act.

Accordingly, this is a complete definition of justice; save that the act is mentioned instead of

the habit, which takes its species from that act, because habit implies relation to act. And if anyone would reduce it to the proper form of a definition, he might say that *justice is a habit whereby a man renders to each one his due by a constant and perpetual will*: and this is about the same definition as that given by the Philosopher (*Ethic.* v, 5) who says that *justice is a habit whereby a man is said to be capable of doing just actions in accordance with his choice*.

REPLY OBJ. 1: Will here denotes the act, not the power: and it is customary among writers to define habits by their acts: thus Augustine says (*Tract. in Joan.* xl) that *faith is to believe what one sees not*.

REPLY OBJ. 2: Justice is the same as rectitude, not essentially but causally; for it is a habit which rectifies the deed and the will.

REPLY OBJ. 3: The will may be called perpetual in two ways. First on the part of the will's act which endures for ever, and thus God's will alone is perpetual. Second on the part of the subject, because, to wit, a man wills to do a certain thing always, and this is a necessary condition of justice. For it does not satisfy the conditions of justice that one wish to observe justice in some particular matter for the time being, because one could scarcely find a man willing to act unjustly in every case; and it is requisite that one should have the will to observe justice at all times and in all cases.

REPLY OBJ. 4: Since *perpetual* does not imply perpetuity of the act of the will, it is not superfluous to add *constant*: for while the *perpetual will* denotes the purpose of observing justice always, *constant* signifies a firm perseverance in this purpose.

REPLY OBJ. 5: A judge renders to each one what belongs to him, by way of command and direction, because *a judge is the personification of justice, and the sovereign is its guardian (Ethic. v, 4)*. On the other hand, the subjects render to each one what belongs to him, by way of execution.

REPLY OBJ. 6: Just as love of God includes love of our neighbor, as stated above (Q. 25, A. 1), so too the service of God includes rendering to each one his due.

5 · Daniel 13:1–64: Susanna and the False Elders

Daniel 13 provides a vivid narrative of justice violated and justice restored. Two elders, appointed as judges, pervert their judgment through lust, deceit, and abuse of authority. Susanna refuses to sin, even under threat, and cries out to God. The elders bear false witness, and the assembly initially believes them because of their status.

Daniel intervenes, separates the witnesses, exposes their lies, and restores justice. The community praises God, and Susanna is vindicated. The elders receive the punishment they intended for her, fulfilling the Mosaic law against false testimony.

III. Appendix: Susanna, Bel, and the Dragon*

CHAPTER 13

See RG 375–82

Susanna. ¹In Babylon there lived a man named Joakim, ²who married a very beautiful and God-fearing woman, Susanna, the daughter of Hilki-ah; ³her parents were righteous and had trained their daughter according to the law of Moses. ⁴Joakim was very rich and he had a garden near his house. The Jews had recourse to him often because he was the most respected of them all.

⁵That year, two elders of the people were appointed judges, of whom the Lord said, “Lawlessness has come out of Babylon, that is, from the elders who were to govern the people as judges.” ⁶These men, to whom all brought their cases, frequented the house of Joakim. ⁷When the people left at noon, Susanna used to enter her husband’s garden for a walk. ⁸When the elders saw her enter every day for her walk, they began to lust for her. ⁹They perverted their thinking; they would not allow their eyes to look to heaven, and did not keep in mind just judgments. ¹⁰Though both were enamored of her, they did not tell each other their trouble, ¹¹for they were ashamed to reveal their lustful desire to have her. ¹²Day by day they watched eagerly for her. ¹³One day they said to each other, “Let us be off for home, it is time for the noon meal.” So they went their separate ways. ¹⁴But both turned back and arrived at the same spot. When they

asked each other the reason, they admitted their lust, and then they agreed to look for an occasion when they could find her alone.

¹⁵One day, while they were waiting for the right moment, she entered as usual, with two maids only, wanting to bathe in the garden, for the weather was warm. ¹⁶Nobody else was there except the two elders, who had hidden themselves and were watching her. ¹⁷“Bring me oil and soap,” she said to the maids, “and shut the garden gates while I bathe.” ¹⁸They did as she said; they shut the garden gates and left by the side gate to fetch what she had ordered, unaware that the elders were hidden inside.

¹⁹As soon as the maids had left, the two old men got up and ran to her. ²⁰“Look,” they said, “the garden doors are shut, no one can see us, and we want you. So give in to our desire, and lie with us. ²¹If you refuse, we will testify against you that a young man was here with you and that is why you sent your maids away.”

²²“I am completely trapped,” Susanna groaned. “If I yield, it will be my death; if I refuse, I cannot escape your power. ²³Yet it is better for me not to do it and to fall into your power than to sin before the Lord.” ²⁴Then Susanna screamed, and the two old men also shouted at her, ²⁵as one of them ran to open the garden gates. ²⁶When the people in the house heard the cries from the garden, they rushed in by the side gate to see what had happened to her. ²⁷At the accusations of the old men, the servants felt very much ashamed, for never had any such thing been said about Susanna.

²⁸When the people came to her husband Joakim the next day, the two wicked old men also came, full of lawless intent to put Susanna to death. ²⁹Before the people they ordered: “Send for Susanna, the daughter of Hilkiah, the wife of Joakim.” When she was sent for, ³⁰she came with her parents, children and all her relatives. ³¹Susanna, very delicate and beautiful, ³²was veiled; but those transgressors of the law ordered that she

be exposed so as to sate themselves with her beauty.³³ All her companions and the onlookers were weeping.

³⁴In the midst of the people the two old men rose up and laid their hands on her head. ³⁵As she wept she looked up to heaven, for she trusted in the Lord wholeheartedly. ³⁶The old men said, “As we were walking in the garden alone, this woman entered with two servant girls, shut the garden gates and sent the servant girls away. ³⁷A young man, who was hidden there, came and lay with her. ³⁸When we, in a corner of the garden, saw this lawlessness, we ran toward them. ³⁹We saw them lying together, but the man we could not hold, because he was stronger than we; he opened the gates and ran off. ⁴⁰Then we seized this one and asked who the young man was, ⁴¹but she refused to tell us. We testify to this.” The assembly believed them, since they were elders and judges of the people, and they condemned her to death.

⁴²But Susanna cried aloud: “Eternal God, you know what is hidden and are aware of all things before they come to be: ⁴³you know that they have testified falsely against me. Here I am about to die, though I have done none of the things for which these men have condemned me.”

⁴⁴The Lord heard her prayer. ⁴⁵As she was being led to execution, God stirred up the holy spirit of a young boy named Daniel, ⁴⁶and he cried aloud: “I am innocent of this woman’s blood.” ⁴⁷All the people turned and asked him, “What are you saying?” ⁴⁸He stood in their midst and said, “Are you such fools, you Israelites, to condemn a daughter of Israel without investigation and without clear evidence? ⁴⁹Return to court, for they have testified falsely against her.”

⁵⁰Then all the people returned in haste. To Daniel the elders said, “Come, sit with us and inform us, since God has given you the prestige of old age.” ⁵¹But he replied, “Separate these two far from one another, and I will examine them.”

⁵²After they were separated from each other, he called one of them and said: “How you have grown evil with age! Now have your past sins come to term: ⁵³passing unjust sentences, condemning the innocent, and freeing the guilty,^d although the Lord says, ‘The innocent and the just you shall not put to death.’ ⁵⁴Now, then, if you were a witness, tell me under what tree you saw them together.” ⁵⁵“Under a mastic tree,”^e he answered. “Your fine lie has cost you your head,” said Daniel; “for the angel of God has already received the sentence from God and shall split you in two.” ⁵⁶Putting him to one side, he ordered the other one to be brought. “Offspring of Canaan, not of Judah,” Daniel said to him, “beauty has seduced you, lust has perverted your heart. ⁵⁷This is how you acted with the daughters of Israel, and in

their fear they yielded to you; but a daughter of Judah did

not tolerate your lawlessness. ⁵⁸Now, then, tell me under what tree you surprised them together.” ⁵⁹“Under an oak,” he said. “Your fine lie has cost you also your head,” said Daniel; “for the angel of God waits with a sword to cut you in two so as to destroy you both.”

⁶⁰The whole assembly cried aloud, blessing God who saves those who hope in him. ⁶¹They rose up against the two old men, for by their own words Daniel had convicted them of bearing false witness.^e They condemned them to the fate they had planned for their neighbor: ⁶²in accordance with the law of Moses they put them to death. Thus was innocent blood spared that day.

⁶³Hilkiah and his wife praised God for their daughter Susanna, with Joakim her husband and all her relatives, because she was found innocent of any shameful deed. ⁶⁴And from that day onward Daniel was greatly esteemed by the people.

6 · St. Juan Macías: Justice in Dominican Life

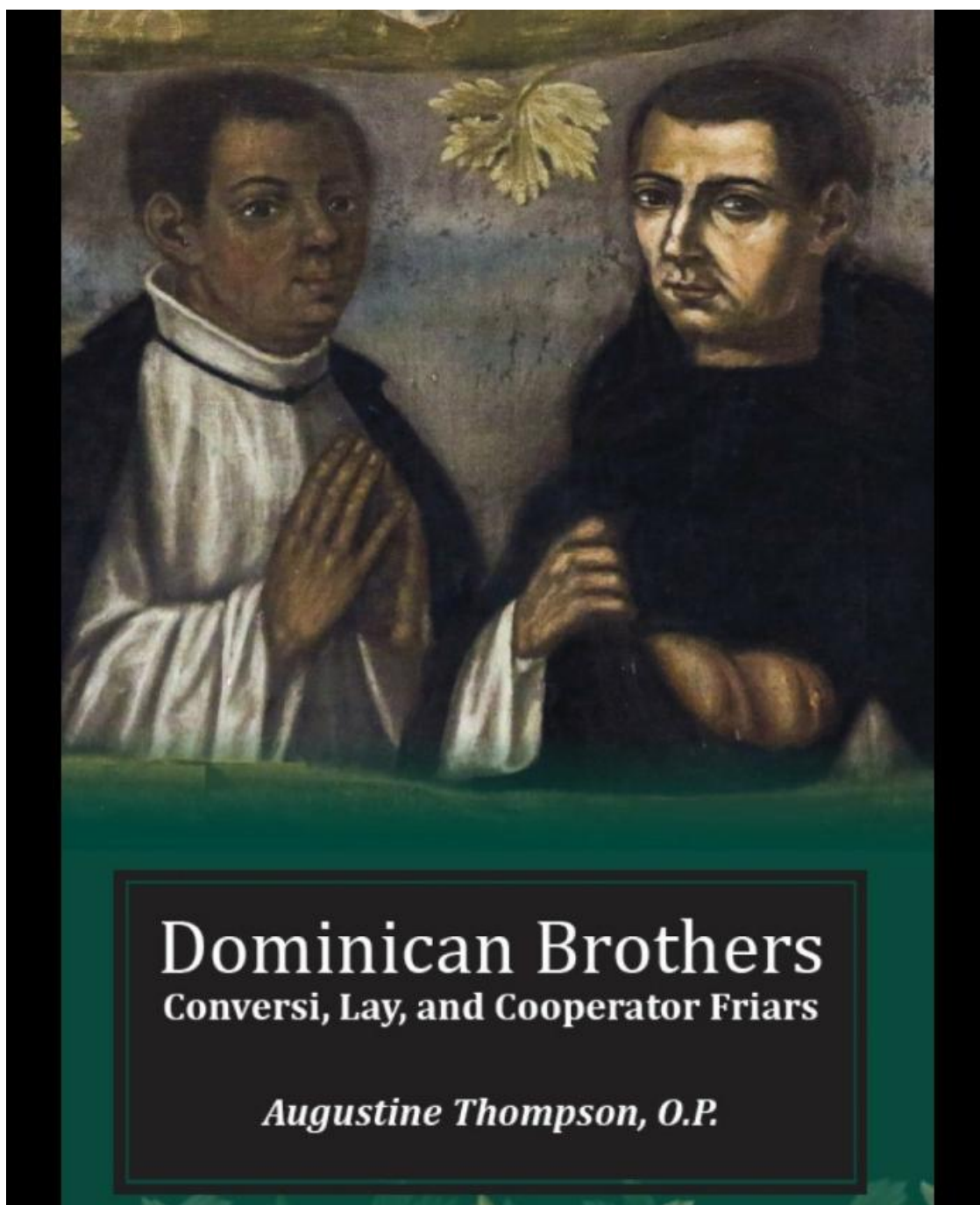
St. Juan Macías embodies justice as mercy, equity, and practical charity. As a conversus porter at La Magdalena, he became known for:

- welcoming all who came to the door;
- offering counsel, encouragement, and spiritual guidance;
- distributing alms and raising resources for the poor;
- reading hearts and offering vocational advice;
- living a life of humility, penance, and prayer.

His justice was not juridical but relational — meeting people’s needs, restoring dignity, and exercising equity in the Dominican tradition. His life shows how justice is lived in daily acts of service, hospitality, and discernment.

That equity is the *epikeia* introduced at §2 above (ST II-II Q 120) — the virtue that holds the letter of a rule at bay when keeping it would defeat the very purpose the rule exists to serve. Here it belongs not to a magistrate but to a porter: it is what Juan Macías exercises a dozen times a day at the door, deciding what the person in front of him is actually owed.

The reading appended below is from Augustine Thompson, O.P., *Dominican Brothers: Conversi, Lay, and Cooperator Friars*, at the section on Saint Juan Macías. It runs a page past our subject and closes on Brothers Domingo de San Miguel and Domingo Frayre of the Province of Quito, whose lives were “mostly hidden in the monastery.” Read that ending as part of the argument: most justice rendered at the door goes unrecorded, and the canonized porter stands in for the many who were not.



SAINT JUAN MACÍAS

The most celebrated of the La Magdalena porters, however, is St. Juan Macías. This saint has received far less scholarly attention than Martin de Porres.¹⁰³ Like Martin, however, the major sources for his life have been edited and published.¹⁰⁴ Among the modern biographies, the closest to a scholarly study, that of Salvador Velasco (1975), adds little to the *vita* prepared for his canonization by the modern postulator of his cause, Tarsicio Piccari (1975), who drew heavily on the early-modern chronicler of the Peruvian Province, Juan Meléndez. My summary of the saint's life draws on these two authors.

About Juan's youth in Spain we know relatively little. He was born on 2 March 1585 at Ribera del Fresno in Extremadura, the home of so many conquistadors. He was baptized at the parish church. His family came from the poor peasantry who had been "ennobled" during the Reconquest,

but this brought them little benefit other than some tax breaks. His father was a familiar of the Holy Office, so we can assume the family was pious. But their influence on Juan was minor, because both of his parents died when he was four years old. He was adopted by a maternal uncle, whose surname, Macías, Juan adopted.

While tending that uncle's sheep herd, he spent much of his time praying the Rosary. We are told that while in the fields, the pious young man had a vision of St. John the Evangelist, who told him to go to Jerez de la Frontera. There he seems to have lived by begging and day labor, a pious vagabond. It was there he first met the Dominicans. Juan then went on to Seville, and then by ship to Cartagena in modern Colombia. Little is known of his stay there. He soon moved on to Bogotá, then to Quito, and finally to Lima. Juan himself would later report that the whole trip took four and a half months. In Lima, Juan first worked for a merchant, who

fired him because he was “illiterate.” By his own admission, he remained unlettered, but he could, in fact, write short notes in Spanish. Juan then found work with a rich ranch owner, Pedro Jiménez Mancho, in the barrio of San Lázaro. The young former shepherd had enough ability to become the rancher’s “mayor- domo,” that is, his chief shepherd. Mostly, however, Juan worked in the Lima slaughterhouse.

At this time, Juan underwent a conversion and decided to enter La Magdalena as a conversus. We know little about this decision, but it is clear that it was in part the result of his growing friendship with that house’s “first porter,” Brother Pablo de la Caridad, the repentant Spanish nobleman whom we have already met. Juan received the habit from the prior, Salvador Ramirez, on 22 January 1622, at the age of thirty-seven. He never made a donatus postulancy, but he was professed after the one-year novitiate. Juan’s novitiate was spent as assistant to Brother Pablo de la Caridad in the porter’s office. Juan became Pablo’s protégé. The future saint was quoted as saying:

I spent my first year of probation as second porter in the excellent company of Fray Pablo de la Caridad. O great and merciful God! So good and so penitential was my companion, and so charitable towards the poor, that I find no words to express it! With his holy example, I, a sinner, began to pray six or seven hours daily, and truly, the time seemed like fifteen minutes.

Brother Pablo was eventually transferred to El Rosario, and Juan became first porter of La Magdalena. This became his major responsibility, although he seems also to have worked in the kitchen.

Under Brother Juan, the porter’s office at La Magdalena became well known in Lima as the place to go for help, no matter what the seeker’s race or condition. Juan became famous for passing out little cartas of encour-

agement and advice to those he cared for. His work was both spiritual and material. If the inquirer was not in need, these cartas often contained a request for alms. Like so many other premodern conversus porters, Juan became famous as an alms-raiser. Sometimes his advice was very practical. To a down-and-out inquirer, Alonso Martín, Juan recommended that he start a bakery. It turned out to be a great commercial success, and Alonso became a major benefactor of the monastery. Hagiographers remark on his gift of counsel and prophecy, and they give some examples. On one occasion, asked for alms by an inquirer at the porter's office, he read the man's heart and recognized him as a runaway priest. Early reports also list his miracles: mostly visions of the saints and of souls he had prayed out of purgatory. It was reported that he had the gift of invisibility. But he was mostly remembered for his healing, charity, and, above all, his wise spir-

itual, vocational, and business advice. These activities are a window into the often-down-to-earth practical services provided by conversus porters.

Like Martin de Porres, we also hear stories about Juan's familiarity with animals. For example, he is said to have trained a donkey to make the daily alms circuit on its own—something that sounds a bit more practical than similar stories about Martin de Porres. Famously, Juan is also remembered as a friend of St. Martin. It does seem that the two pious brothers made “days of recollection” together in the country at the haciendas belonging to El Rosario, but that is really all we know about their relationship.

About Juan's own piety we are much better informed, although these reports resemble the kind of piety that seems stereotypical for holy Spanish conversi. Juan was obedient, vigilant about his chastity, humble, and devoted to the Eucharist. More specifically, he meditated on Christ Crucified and had devotions to the Blessed Virgin and his patron St. John the

Evangelist. We are told that his penitential practice of flagellating himself was once so severe that he needed an operation to repair the damage. He confessed this incident on his deathbed as one of his faults. As a conversus, he did not normally attend the sung community Mass, but he did attend as many as twenty Low Masses each morning, perhaps several at once, as conversi often served more than one Mass at a time.

As he was dying, Brother Juan Macías made a public general confession of his life and experiences. This recounting lasted several days. It is the source of most of the visions and miracle stories told of him. He died on 16 September 1646. Like Martin de Porres, he was, by the time of his death, a famous personality of the city of Lima. The archbishop, Pedro de Villagomez, and the viceroy, Don Pedro de Toledo y Leyba, both helped carry his coffin. His first recorded miracle occurred during the funeral, when a

deaf priest, Antonio de Alarcon, had his hearing restored after he used the holy porter's hand to bless his ear. Juan's cell became a shrine.

Like St. Martin, Juan's road to the altar was long. His name, but not Martin's, was included in the solemn petition of the master of the Order in 1656 to move forward the processes of Louis Bertrand, Ambrose Sansedoni, James of Mevania, Catherine de' Ricci, and Rose of Lima (who, it seems, contrary to legend, was not an acquaintance of the holy brothers).¹⁰⁵ The Order repeated the call for his and Martin's canonizations in 1777.¹⁰⁶ But Juan Macías was only beatified by Pope Gregory XVI in 1837. Pope Paul VI canonized him on 28 September 1975, and his feast is celebrated on 18 September.

Like the Philippines, the Province of Peru and much of the Order entered a period of decline in the 1700s, something we will discuss in the next chapter. But we should not end the story of the famous conversi of

Latin America without a word about two holy brothers of the Province of Quito. Brothers Domingo de San Miguel and Domingo Frayre were commemorated at the Genoa general chapter of 1642.¹⁰⁷ Both were remembered as men of great penance, simplicity, and chastity. Friars revered them as saints, even before their deaths. They were mentioned again in the acts of the general chapter of 1644.¹⁰⁸ Their lives, in contrast to those of the Lima Circle, were mostly hidden in the monastery. In this, they are like the greater number of conversi of the Spanish Missions, and so they fittingly remind us of those many other forgotten, uncanonized, brother saints.

7 · Section Summaries and Discussion Questions

7.1 · Justice — Conceptual Introduction

Summary

This section introduces the classical definition of justice — to each their due — and immediately expands it into its deeper dimensions: standards of “due,” timing, perspective, fairness, and equity. It situates justice within the American adversarial tradition, then takes Rawls at his strictest: not that we should be mindful of the least advantaged, but that an inequality is justified only if it works to their greatest benefit — and only after equal basic liberties and fair equality of opportunity have been secured. It then sets Rawls against Aquinas, justice as a property of institutions against justice as a habit in the will ordered to the good, and follows that difference through subsidiarity to epikeia. Two examples, the pizza distribution and Jason’s dilemma at the drugstore, carry the question into ordinary life and into extreme necessity.

Discussion Questions

1. When we say “to each their due,” who determines what is “due,” and by what standard?
2. How do fairness and equity differ, and how do they relate to justice?
3. In the pizza example, what principle of justice is Mom applying? Is it distributive justice, equity, or something else? Rawls would say his principles do not reach the kitchen table at all. Is he right, or does justice begin at home?

4. In Jason’s case, does necessity justify breaking the law? How does natural law inform this scenario — and if the tradition has a settled answer, would having it end the argument or only relocate the question?
5. Rawls locates justice in institutions; Aquinas locates it in the will. Is that a disagreement about where justice lives, or about what justice is for?

7.2 · CCC 1807 — The Catechism’s Definition of Justice

Summary

CCC 1807 defines justice as the “constant and firm will to give their due to God and neighbor.” Justice toward God is the virtue of religion; justice toward neighbor establishes harmony, rights, equity, and the common good. The Catechism emphasizes habitual right thinking and upright conduct, warning against partiality toward either the poor or the powerful.

Discussion Questions

1. What does “constant and firm will” add to our understanding of justice as a virtue?
2. How does justice toward God differ from justice toward neighbor?
3. Why does the Catechism warn against partiality toward both the poor and the great?
4. Which model of justice — exchange, equivalence, or minimums — best reflects the Gospel?
5. How does justice relate to the common good in a pluralistic society?

7.3 · ST II-II Q 58 — Aquinas on Justice

Summary

Aquinas defines justice as a habit that inclines a person to render to each their due with a constant and perpetual will. He distinguishes general (legal) justice from particular justice (Q 58, A. 5–7), and particular justice into commutative and distributive justice (Q 61, A. 1). Aquinas insists that justice is always toward another, resides in the will, and is the chief of the moral virtues because it perfects our relationships. He also clarifies that “perpetual and constant” refers to the stability of the will, not an unending act.

Discussion Questions

1. Why does Aquinas place justice in the will rather than the intellect or the emotions?
2. What is the difference between general justice and particular justice?
3. Why is justice the “chief” of the moral virtues?
4. How does Aquinas’s definition illuminate the Catechism’s definition?
5. What does it mean to “render to each their due” in a world of unequal power?

7.4 · Daniel 13 — Susanna and the False Elders

Summary

Daniel 13 provides a vivid narrative of justice violated and justice restored. Two elders, appointed as judges, pervert their judgment through lust, deceit, and abuse of authority. Susanna refuses to sin, even under threat, and cries out to God. The elders bear false witness, and the assembly initially believes them due to their status. Daniel intervenes, separates the witnesses, exposes their lies, and restores justice. The community praises God, and Susanna is vindicated. The elders receive the punishment they intended for her, fulfilling the Mosaic law against false testimony.

Discussion Questions

1. How does the Susanna story illustrate the dangers of corrupt judges and false witness?
2. Why does Susanna choose righteousness over self-preservation?
3. What does Daniel teach us about discernment, truth, and procedural justice?
4. How does this story illuminate Aquinas's insistence that justice requires right judgment?
5. Where do we see modern parallels to Susanna's situation?

7.5 · St. Juan Macías — Justice in Dominican Life

Summary

St. Juan Macías embodies justice as mercy, equity, and practical charity. As a conversus porter at La Magdalena, he was known for welcoming all who came to the door, offering counsel and spiritual guidance, distributing alms and raising resources for the poor, reading hearts and offering vocational advice, and living a life of humility, penance, and prayer. His justice was not juridical but relational — meeting people's needs, restoring dignity, and exercising the equity Aquinas calls *epikeia* (ST II-II Q 120), which sets aside the letter of a rule when keeping it would defeat the rule's own purpose. His life shows how justice is lived in daily acts of service, hospitality, and discernment.

Discussion Questions

1. How does St. Juan Macías exemplify “rendering to each their due” in a Dominican way?
2. What does his ministry as porter teach us about justice as hospitality?
3. How does equity (*epikeia*) appear in his counsel and almsgiving?
4. What can lay Dominicans learn from his integration of prayer, penance, and service?
5. How does Juan Macías complement the more juridical examples of justice in this session?

7.6 · Integrative Discussion — Justice as a Dominican Virtue

Summary

Across the session, justice emerges as a virtue of right relationship (Aquinas), a habit of constant and firm will (CCC 1807), a safeguard against corruption (Daniel 13), a lived expression of mercy and equity (Juan Macías), and a practical moral framework for daily life. Justice is not merely legal fairness; it is the Dominican commitment to truth, right judgment, and the protection of the vulnerable.

Discussion Questions

1. How do these five strands — the conceptual introduction (Rawls and the natural law), the Catechism, Aquinas, Daniel, and Juan Macías — form a unified Dominican understanding of justice?
2. What does justice demand of us as lay Dominicans today?
3. How do we cultivate the “constant and firm will” required for justice?
4. Where are the vulnerable in our communities, and what is “their due”?
5. How does justice relate to mercy, truth, and the Dominican mission of preaching?